

Case	Title / Nature of Case
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LINE: 1

22-CIV-03614

DAVID LYON VS. STATE OF CALIFORNIA DEPARTMENT OF TRANSPORTATION, ET AL

DAVID LYON
CALTRANS

DAVID E. LYON
JOSE GONZALEZ

DEFENDANT STATE OF CALIFORNIA’S MOTION FOR SUMMARY JUDGMENT AND ADJUDICATION OF ISSUES

TENTATIVE RULING:

For the reasons stated below, Defendant State of California’s Motion for Summary Judgment is **GRANTED**.

Defendant State of California’s Request for Judicial Notice is **DENIED** as irrelevant.

Defendant State of California’s evidentiary objections are **OVERRULED** as to Nos. 1–16 and 20–21, and **SUSTAINED** as to Nos. 17–19 and 22–35 for lack of authentication or foundation, and as to Nos. 36–37 because the purported evidence was not submitted with the opposition papers.

BACKGROUND

The Third Amended Complaint alleges that, on September 7, 2020, Plaintiff David Lyon was injured in an accident while riding his bicycle downhill on State Route 1, which was constructed, designed, and maintained by Defendant State of California. (June 17, 2025 Third Amended Complaint, ¶¶ 17–18.) The accident was allegedly caused by a curb or dike placed on the edge of the roadway that unexpectedly narrowed the shoulder, forcing Lyon to veer off the roadway into the poorly maintained surrounding area to avoid crashing into stopped automobile traffic in the lane of travel. (Id., ¶ 20.) The TAC alleges that the narrow shoulder, the dike, and the surrounding area of the highway constituted a dangerous condition for which the State is liable for creating the condition, failing to remediate it, and failing to warn of it. (Id., ¶¶ 24–38.)

The State moves for summary judgment, contending that the alleged condition was not dangerous, that Lyon cannot establish the State had notice of the condition, and that the condition did not cause the accident. The State also contends that it is immune from liability for the design of the condition and for failing to warn. In the alternative, the State moves for summary adjudication of these issues.

LEGAL STANDARD

A party may move for summary judgment if it is contended that the action has no merit or that there is no defense to the action. (Code Civ. Proc., § 437c, subd. (a)(1).) Summary judgment shall be granted only if all papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Id., subd. (c).)

A party may move for summary adjudication as to one or more causes of action within an action if the party contends that the cause of action has no merit. (Code Civ. Proc., § 437c, subd. (f)(1).) A defendant moving for summary judgment or summary adjudication bears the initial burden of showing that one or more elements of the cause of action cannot be established, or that there is a complete defense to the cause of action. (Id., subd. (p)(2).) If the defendant carries that burden, the burden shifts to the plaintiff to show that a triable issue of material fact exists as to the cause of action or defense. (Ibid.)

The moving party's ultimate burden of persuasion that there are no triable issues of material fact never shifts. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) This burden is unaffected by the strength or weakness of the opposition. (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.) Summary judgment must be denied, despite deficiencies in the opposition, if the moving party has not carried its burden. (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 416.)

Because summary judgment deprives the opposing party of the right to trial, doubts are resolved in favor of the party opposing the motion. (*Huynh v. Ingersoll-Rand* (1993) 16 Cal.App.4th 825, 830; *See's Candy Shops, Inc. v. Superior Court* (2012) 210 Cal.App.4th 889, 900.) The moving party's evidence is strictly construed, the opposing party's evidence is liberally construed, and all reasonable inferences are drawn in favor of the opposing party. (*Hufft v. Horowitz* (1992) 4 Cal.App.4th 8, 20.)

NO TRIABLE ISSUE AS TO THE EXISTENCE OF A DANGEROUS CONDITION

To establish public entity liability for injury caused by a condition of public property, a plaintiff must show, among other things, that the property was in a dangerous condition at the time of the injury. (Gov. Code, § 835.) A "dangerous condition" is a condition of property that creates a substantial, as distinguished from a minor, trivial, or insignificant, risk of injury when the property or adjacent property is used with due care in a reasonably foreseeable manner. (Gov. Code, § 830, subd. (a).)

The State contends that the subject public property was not in a dangerous condition at the time of the accident. The State relies on two categories of evidence. First, the State relies on the absence of prior accidents involving the alleged condition. The State submits traffic reports, incident logs, records of complaints, and testimony from State employees showing the absence of any bicycle accidents at the subject location for at least five years before Lyon's accident. (Dec. 17, 2025 Separate Statement, Nos. 11–15.) Second, the State submits the expert opinion of a licensed civil engineer with 28 years of experience in traffic engineering, who opines that neither the subject dike, adjacent shoulder, nor relevant portion of State Route 1 was dangerous to bicyclists before or at the time of the accident. (Dec. 17, 2025 Index of Evidence, Ex. 3, Senior Decl., ¶ 44e.)

Lyon argues that the accident data does not assist the State, but his cited authority recognizes that the absence of similar accidents is relevant to determining whether a condition is dangerous. (*Lane v. City of Sacramento* (2010) 183 Cal.App.4th 1337, 1346.) The State's accident data, considered together with the expert opinion of a qualified civil engineer, is sufficient to carry the State's initial burden and shift the burden to Lyon to demonstrate a triable issue of material fact as to whether the alleged condition was dangerous.

In opposition, Lyon relies on three categories of evidence. First, he relies on the State's accident data and purported traffic reports maintained by the University of California. Even setting aside the inadmissibility of much of this data, Lyon's argument that all nearby accidents should be considered—regardless of the type of vehicle involved or the cause of the accident—is not persuasive. Unless an accident was caused by the same

alleged dangerous condition, it is not probative of whether the alleged condition here created a substantial risk of injury. Traffic accidents may occur for many reasons unrelated to a dangerous condition of public property. There is no evidence that the narrow shoulder, dike, or lack of fill beside the highway increased the risk of injury to persons using the roadway with due care.

Second, Lyon relies on purported guidelines and standards from the State's Highway Design Manual. Even setting aside the lack of authentication of the HDM excerpts, the State correctly notes that the cited portions are guidelines. (Senor Decl., ¶ 31.) Although the HDM may recommend particular designs to enhance roadway safety, a trained engineer's deviation from those guidelines on a particular project does not, by itself, establish that the deviation created a substantial risk of injury under the circumstances.

Third, Lyon relies on images of the site and his own personal knowledge of the accident. This evidence does not create a triable issue as to whether the alleged condition created a substantial risk of injury. The relatively narrow shoulder, the dike, and the lack of fill off the side of the roadway are not so obviously dangerous that a reasonable trier of fact could find that the condition of the highway presented a substantial risk of injury to a person using the roadway with due care.

Accordingly, Lyon has not carried his shifted burden, and the State has carried its ultimate burden of showing that no triable issue of material fact exists as to whether a dangerous condition of public property existed. Because the absence of a dangerous condition is fatal to both causes of action alleged against the State, the Court need not decide whether the State is otherwise immune from liability or whether Lyon can establish the remaining elements of his causes of action.

The motion for summary judgment is **GRANTED**.

If this tentative ruling is uncontested, it shall become the order of the Court. Counsel for Defendant shall prepare a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall give notice of ruling as required by law.

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LINE: 2

24-CIV-01936

ITRIA VENTURES LLC, VS. MEIMEI LI, ET AL

ITRIA VENTURES LLC,
MEIMEI LI

JASON S. TAKENOUCHI

DEFENDANT SF GLASS CLEANING SOLUTIONS' MOTION TO SET ASIDE DEFAULT GRANTING OF MOTION FOR SUMMARY ADJUDICATION

TENTATIVE RULING:

For the reasons stated below, Plaintiff Itria Ventures LLC's unopposed motion for summary adjudication of the third cause of action for breach of contract against Defendant SF Glass Cleaning Solutions is **GRANTED**.

The hearing on this motion was initially set for December 18, 2025. Defendant's counsel appeared at the hearing and explained that he had intended to file an opposition but had mistakenly calendared a later due date. (Minute Order, Dec. 18, 2025.) The Court continued the hearing to June 18, 2026, and granted Defendant leave to file an opposition and Plaintiff leave to file a reply. (Ibid.) Defendant again failed to file any opposition, which was due by May 29, 2026. (Code Civ. Proc., § 437c, subd. (b)(2).) Accordingly, Plaintiff's motion remains unopposed.

LEGAL STANDARD

A party may move for summary judgment if it is contended that the action has no merit or that there is no defense to the action. (Code Civ. Proc., § 437c, subd. (a)(1).) Summary judgment shall be granted if all papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Id., subd. (c).)

A party may move for summary adjudication as to one or more causes of action within an action. (Code Civ. Proc., § 437c, subd. (f)(1).) A plaintiff moving for summary adjudication bears the initial burden of proving each element of the cause of action. (Code Civ. Proc., § 437c, subd. (p)(1); *Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 241.) If the plaintiff carries that burden, the burden shifts to the opposing party to show that a triable issue of material fact exists as to one or more elements of the cause of action or as to each element of an affirmative defense. (Code Civ. Proc., § 437c, subd. (p)(1); *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 467.)

The moving party's ultimate burden of persuasion that there are no triable issues of material fact never shifts. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Because summary judgment or summary adjudication deprives the opposing party of a trial, the moving party's evidence is strictly construed, the opposing party's evidence is liberally construed, and doubts are resolved in favor of the opposing party. (See's *Candy Shops, Inc. v. Superior Court* (2012) 210 Cal.App.4th 889, 900; *Huynh v. Ingersoll-Rand* (1993) 16 Cal.App.4th 825, 830.)